SOLICITOR'S EXCHANGE RECORD	
Buyer's conveyancer confirmed they checked with the Buyer immediately before exchange, and the contract contains all spoken statements the Buyer is relying on *Each solicitor to insert "confirmed"*	
Exchange time	
Law Society Exchange formula (A / B / C)	
Name of Buyer's conveyancer exchanging this contract	
Name of Seller's conveyancer exchanging this contract	

Dated

Crest Nicholson Operations Limited

- and –

Jade Taylor and Paul Robert Taylor

CONTRACT

---

relating to

Plot 34
Albany Wood

CONTRACT

WARNING: YOU ARE ADVISED TO SEEK LEGAL ADVICE ON THE CONTENT AND MEANING OF THIS CONTRACT BEFORE SIGNING AND AGREEING TO BE LEGALLY BOUND BY ITS TERMS

SCHEDULE

Seller	**Crest Nicholson Operations Limited** (Company Number 01168311) whose registered office is at 500 Dashwood Lang Road Bourne Business Park Addlestone Surrey KT15 2HJ
Buyer	**Jade Taylor and Paul Robert Taylor** of 25 Abbots Road Bishops Waltham Southampton SO32 1RE
Development	**Albany Wood** comprised in title number(s) HP840023 at the Land Registry (which from time to time may include additional land upon which the Seller carries out or intends to carry out development)
Property	Plot 34 on the Development shown edged red on the attached plan
Tenure	Freehold
Part Exchange Property	N/A
Buyback Contract	The contract of todays' date between (1) Jade Taylor and Paul Robert Taylor and (2) Crest Nicholson Operations Limited with respect to the sale and purchase of 25 Abbots Road, Bishops Waltham, SO32 1RE
Code	the New Homes Quality Code https://www.nhqb.org.uk/new-homes-quality-code/
Fixed Completion Date	
Legal Completion	completion of the sale and purchase of the Property
New Home Warranty Provider	NHBC
Non-Financial Incentives	Carpet to landing and four bedrooms & Amtico to wet areas and entire ground floor; Wardrobes to all bedrooms; Full height tiling to family bathroom and both en-suites; half height tilling to Upgraded WC; Upgraded kitchen; Silestone to kitchen and utility; Electric socket, light, garden tap & turf to rear garden
Warranty	the form of guarantee provided for the Property by the New Home Warranty Provider
Weatherproof	at the date of this Contract the Property is / is not weatherproof (delete as applicable)

Financial Details

Release Purchase Price	£699,950.00
Discount (if any)	£14,950.00
Net Purchase Price (if Discount given)	£685,000.00
Less	
Financial Incentives (if any)	SDLT Contribution: £21,750.00
Add	
Document Fee	£ 150.00 + VAT

Use of personal information
We will look after the information you provide us and we will never sell it to third parties
The personal information that you provide about yourself and any joint buyer will be used by us in accordance with our Privacy Policy which can be accessed at https://www.crestnicholson.com/privacypolicy. This may include disclosures of some of that information to parties involved in the sale process including your nominated IFA or finance scheme provider, those involved with providing warranty or after sales support, law enforcement or anti-fraud and credit reference agencies (which may be located outside the EEA)
We have recorded your marketing preferences from your initial contact with us. If at any time you wish to change these please contact us at dataprotection@crestnicholson.com.
Warranty
The Buyers acknowledge that they have understood the form of Warranty in respect of the Property at the commencement of this Contract.

Duly authorised on behalf of the Seller (delete as appropriate)	
Signature of the Buyer(s) (delete as appropriate)	

THIS CONTRACT is made on the

BETWEEN the Seller and the Buyer specified in the Schedule which forms part of this Contract

1. OPERATIVE CLAUSES

Buyback

1.1. The consideration under this Agreement comprises the terms contained within this Agreement and the terms contained within the Buyback Contract

1.2. The parties have simultaneously with exchange of this Agreement entered into the Buyback Contract.

Construction of the Property

1.3. If at the date of this Contract the construction of the dwelling on the Property has not been completed, the Seller shall construct the Property:

1.3.1. in a good and workmanlike manner;

1.3.2. in accordance with planning permission and building regulations approval;

1.3.3. to the standards required by the New Home Warranty Provider (with whom the Property will be registered by the Seller) whose details of cover will be supplied to the Buyer's conveyancers; and

1.3.4. as soon as reasonably practicable taking account of the Seller's build forecast for constructing the Development (which may be varied from time to time (i.e. on one or more occasions)) and the Anticipated Legal Completion Date but with allowance being given for delays due to difficulties with weather, trades, materials or for any other reasons outside the Seller's reasonable control (such as a pandemic or other similar event) or any one or more of them inhibiting progress.

1.4. The Property is sold with the benefit of the Warranty. The Seller will not be liable to the Buyer or any successor in title (i.e. someone who takes legal ownership of the Property following a transfer from the Buyer) in respect of any defect, error or omission in the construction of or in respect of any work carried out at the Property except to the extent and for the period that it is liable under the provisions of the Warranty.

Physical Completion

1.5. The Property shall be deemed to have been completed for the purposes of this Agreement notwithstanding the fact that:

1.5.1. the turfing or seeding and landscaping if appropriate to the gardens may not have been carried out (although in that event the Seller will complete the same as soon as practical);

1.5.2. boundary treatment remains to be completed;

1.5.3. final surfacing of the estate roads driveways and paths remains to be completed;

1.5.4. final connection and operation of any service media is still to occur, provided that prior to such final connection and operation of any service media the Seller will ensure that an adequate temporary provision of service media is available to the dwelling until the relevant service media are connected and operational;

PROVIDED THAT the Seller shall have all notified and agreed defects or outstanding matters remedied or supplied in accordance with clause 1.23.

Changes to Boundaries/Plans/Layout

1.6. The Buyer shall be deemed to have inspected the plans of any landscaping scheme affecting the Property and any street lighting scheme for the estate roads to which the Property fronts and in the event that either or both schemes are not available for inspection at the date hereof the Buyer acknowledges that it will accept any such scheme or schemes as are ultimately agreed with and approved by the appropriate Local Authority.

1.7. All plans supplied are for the purpose of identification only and are not intended to limit or provide a precise description of the Property or the layout of the dwelling house, garage, driveway or garden and no warranty is given and nor is any warranty implied as to the accuracy of them. The Seller shall use its reasonable endeavours to ensure that the plans showing the area of the Property are as accurate as possible to adhere to such plans. The Seller will notify the Buyer of any such changes to the Property and seek the Buyer's agreement to any Major Changes in accordance with clause 1.40.

Sale and Purchase

1.8. The Seller and the Buyer agree that the Seller shall sell and the Buyer shall buy the Property with the Tenure specified in the Schedule for the Net Purchase Price with vacant possession (i.e. in a state fit to be occupied) on Legal Completion.

1.9. The Buyer shall provide any identity or other documents requested as part of the Seller's anti-money laundering and "know your customer" process as the Seller shall request (which may include parties who are financially contributing but not legally acquiring the Property) and such process must be undertaken to the complete satisfaction of the Seller prior to Legal Completion.

1.10. The Buyer shall pay the Net Purchase Price to the Seller on Legal Completion in accordance with a completion statement to be supplied by the Seller's solicitors.

Standard Conditions of Sale

1.11. The Standard Conditions of Sale (Fifth Edition – 2018 Revision) ("the Conditions") are produced by The Law Society and are routinely used for the sale and purchase of residential property in England and Wales. The Conditions are incorporated so far as they are not expressly varied by or inconsistent with other provisions of this Contract except that Conditions 1.3.7(d) 4.3.4 and 8.2.5 shall not apply and the Contract rate shall be 4 per cent over the base rate of Barclays Bank Plc (or its successor) from time to time in force.

Legal Completion

1.12. Legal Completion shall take place on the Fixed Completion Date.

1.13. Before Legal Completion a copy of the cover note issued by the New Home Warranty Provider will be issued and sent to the Buyer's conveyancers by post, DX, email or fax to confirm the terms of the new home warranty cover that has been offered for the Property.

Works after Legal Completion & Snagging Items

1.14. Prior to the date of this Agreement:

1.14.1. The Seller has arranged for a full survey of the Property to have been conducted by a third-party surveyor ("the Survey"). A copy of the Survey has been provided to the Buyer and its conveyancers and the parties have agreed the extent of any further works (if any) to be carried out to the Property.

1.14.2. The Seller has undertaken these works (if any) and, if appropriate, the surveyor has certified that these works (if any) have been satisfactorily completed.

1.14.3. The Buyer confirms that they are happy with the results of the Survey (and any works carried out by the Seller as recommended by the Survey or agreed between the parties) and has continued with the purchase of the Property on this basis.

1.15. Subject to clause 1.16 in the event that following Legal Completion there are any reasonable and proper snagging items raised by the Buyer within 14 days of Legal Completion and agreed by the Seller through the Seller's after sales service the Seller will carry out such works agreed between the parties within a reasonable period of time PROVIDED THAT:

1.15.1. the Buyer will co-operate with the Seller by allowing sufficient access to the Property to such operatives of the Seller for the purposes required at reasonable times between 9.00am and 5.00pm Monday to Friday on working days. The Buyer should provide access without claiming any loss of earnings (which will not be payable by the Seller);

1.15.2. the Buyer shall not be entitled to any claim for compensation other than reasonable out of pocket expenses directly incurred resulting from such works being carried out after Legal Completion; and

1.15.3. The Buyer acknowledges that if such access is unreasonably refused then the Seller's obligations shall be deemed to have been fulfilled without further liability to the Buyer or the right to claim compensation or loss and further provided that the Seller shall not be liable to rectify any damage to the Property caused by the Buyer or third parties acting for on behalf of the Buyer.

1.16. The parties agree that the following snagging items shall be excluded from the Seller's liability under clause 1.15:

1.16.1. Any defects not identified by the third party surveyor;

1.16.2. Defects in plasterwork or damage occurring by reason of the improper operation of any central heating system by the Buyer;

1.16.3. Damage or defects caused by the Buyer, or its servants, agents, licensees or invitees;

1.16.4. Damage or defects caused by fair wear and tear;

1.16.5. Any items covered by separate guarantee issued to the Buyer by any manufacturer; and/or

1.16.6. Any damage or defects which fall within NHBC tolerances.

Maintenance and Decoration

1.17. The Buyer will be responsible for the maintenance and decoration of the Property from the date of Legal Completion and acknowledges that the guidance provided by the New Home Warranty Provider will be adhered to. This duty to maintain includes garden maintenance and watering. The Seller will accept no responsibility for gardens damaged by neglect or ill treatment. For maintenance advice the Buyer should visit the Royal Horticultural website at www.rhs.org.uk/advice.

1.18. The Seller takes no responsibility for digging gardens or the quantity or quality of the garden soil where the specification provides for the seeding or turfing of the gardens at the Property and if such seeding or turfing shall not have been carried out before Legal Completion the Seller shall seed or turf the gardens during the next suitable growing season after Legal Completion and it is agreed that the Buyer shall not be entitled to withhold any sums of money owed to the Seller in respect to this.

Transfer

1.19. The Transfer of the Property to the Buyer shall be in the attached form but the Seller reserves the right to vary the form before Legal Completion provided the alteration is reasonable and does not materially impact on the value of the Property and the following additional provisions shall apply:

1.19.1. the Seller shall be entitled to decline to Transfer the Property to any person or entity other than the Buyer specifically named in this Contract or by more than one Transfer or at less than the Net Purchase Price (if applicable) or at purchase prices divided between different parts of the Property;

1.19.2. final versions of the Transfer shall be prepared by the Seller's solicitors to whom the Buyer shall pay for such services the Document Fee on Legal Completion; and

1.19.3. the Buyer's conveyancers shall at the same time as the application to register the Transfer at the Land Registry, lodge Form RX1 applying for the registration of any restriction required to be placed on the title to the Property in the exact form prescribed for such a restriction in the Transfer.

Title Matters

1.20. The Seller is owned by Crest Nicholson plc. Crest Nicholson plc has various subsidiary and associated companies from time to time including the Seller in or connected to its group ("Group") and land is held in the name of various such companies. If the Development is not owned by or registered in the Seller's name but in the name of another company then:

1.20.1. the Seller confirms that the Seller has authority from that Group company to market and sell the properties on the Development including the Property; and

1.20.2. the Seller will seek to arrange, and the Buyer agrees to accept, the Transfer to the Buyer by the landowning Group company.

1.21. Apart from the Seller and the Buyer, where the Transfer is to be executed by a third party who also has an interest or some other involvement in the Property then the Seller will seek to arrange the execution of that party to the Transfer.

1.22. Title to the Development is registered at the Land Registry and (if not already deduced (i.e. ownership proven)) title shall be deduced in accordance with condition 4.1.2 of the Conditions except that the Seller may supply photocopies (rather than official copies) of the entries in the registers of title and of the title plan to the Development or a certificate from the Land Registry that the Property is included in such title.

1.23. The Property is sold with full title guarantee (i.e. the Seller has the right to sell the Property as well as several other related presumptions) subject to and with the benefit of:

1.23.1. all matters (other than any charges to secure money) relating to the Property contained or referred to in the registers of title for the Development at the Land Registry except for entries revealed in pre-completion searches;

1.23.2. such rights, easements, wayleaves and consents in relation to conducting media as may prior to Legal Completion be created so as to affect the Property (the Seller guaranteeing to supply to the Buyer prior to Legal Completion a copy of any deed or document created within the scope of this provision);

1.23.3. statutory rights of local authorities and suppliers of utilities that have been or will be exercised;

1.23.4. the provisions of the draft Transfer annexed

and the Buyer shall raise no objection or demands in respect of any such matter.

1.24. Notwithstanding the full title guarantee (as described above) given by the Seller, the Property is sold to the Buyer with actual knowledge of all information which would be available to a prudent buyer who has made all usual searches and enquiries and subject to such matters as are referred to in condition 3.1.2 of the Conditions as if the same were set out in this Contract point by point.

<u>Other Matters</u>

1.25. The Seller will comply with the Code and when references are made in the Code to the Home they shall be interpreted as if they are references to the Property in this Contract.

1.26. The Property shall be at the risk of the Seller until Legal Completion PROVIDED ALWAYS that the Seller shall not be required to supply particulars of such insurance cover and neither the Buyer nor his mortgage providers (if any) shall be entitled to have a notice of its or their respective interests endorsed on the Seller's policy or to raise any objection or enquiry with regard to it.

1.27. Pursuant to the provisions of the Proceeds of Crime Act 2002 or any other statutory enactment or otherwise if any order or directive by any lawful authority pursuant to such laws is made with regard to any of the monies paid or payable by the Buyer pursuant to the provisions of this Contract then the Seller may by notice in writing to the Buyer terminate this Contract at which point all or any part of the Deposit shall be forfeited to the Seller.

1.28. The Buyer consents to the Seller or any other associated company continuing to use photographs of the Property in the sales and marketing materials of the Seller or any other Group company after Legal Completion has taken place. This will include but not be limited to using photographs to illustrate the type of properties the Seller has for sale on the Development and the Seller or any other Group company has for sale on all or any of their other developments.

1.29. If it is necessary for the Seller prior to Legal Completion or the Buyer after Legal Completion to grant for the benefit of the Development or any properties on it a right for the local or other statutory authority or another party to lay cables pipes or do other relevant matters then the Buyer confirms this is acceptable so long as the rights granted do not materially affect the value of the Property and the Buyer agrees to grant such rights and to enter into such deeds or

documents as are required by the Seller the authority or other party to grant such rights for which no fee will be payable to the Buyer.

1.30. The Seller reserves to itself and its Contractors at all times the right of oversailing by cranes over the Property and the Development in connection with the construction of other parts of the Development both before Legal Completion of the Property and afterwards during the remainder of construction of the Development.

Termination Rights

1.31. If the Buyer shall at any time before Legal Completion is effected die or have a Receiving Order made against it or make any composition with its creditors or become subject to proceedings for insolvency the Seller may by written notice to the Buyer terminate this Contract at which point the Deposit (but no other monies paid to the Seller) shall be returnable to the Buyer or its personal representative, receiver or trustee in bankruptcy but without any interest, costs, compensation or other payment on either side.

Management Company

1.32. If the Seller requires a Management Company to be incorporated to take over the Seller's responsibilities as provided for in the Transfer then:

1.32.1. the Seller shall be entitled to control the Management Company and appoint the directors of the Management Company until such time as the Seller reasonably decides to transfer control of the Management Company to the members (the "Transfer Date");

1.32.2. the Buyer agrees to become a member of the Management Company on condition that the Buyer shall not exercise his voting rights until the Transfer Date or if earlier the date of the resignation of the nominee directors of the resident's Management Company appointed by the Seller and on Legal Completion the Buyer shall (if required) sign and deliver to the Management Company (at the Buyer's expense) a consent in the forms prescribed by the Registrar of Companies agreeing to act as a director and company secretary of the Management Company but such act on the part of the Buyer shall not oblige the Management Company to confirm or put into effect such appointment; and

1.32.3. the Buyer (or one of them) shall if requested to do so by the Seller become a director or company secretary of the Management Company and shall on Legal Completion deliver to the Seller's solicitors a duly completed and signed Form AP01 and AP03.

Restriction on Assignment

1.33. This Agreement is personal to the parties to this Agreement and shall not be capable of transfer to a third party except by the Seller to another group or associated company.

Incentive(s)

1.34. The Seller will provide the Buyer with the Discount the Financial Incentives and/or the Non-Financial Incentives (as applicable).

1.35. Where a Discount from the Release Purchase Price applies the Net Purchase Price will be shown as the sum or premium paid for the Property in the Transfer.

1.36. Where any Financial Incentive(s) are being given the Transfer will show the Release Purchase Price with the total allowance made for such Financial Incentive(s) specified separately.

Land Compensation Act

1.37. The Buyer agrees not to make a claim pursuant to Part I of the Land Compensation Act 1973 in respect of any roads verges and footpaths now or later constructed within the Development which are intended to become highways maintainable at the public expense and/or any works to be carried out by the Seller in compliance with any planning permission agreement/ obligation/ undertaking under Section 106 of the Town and Country Planning Act 1990 and/or agreement under Section 278 of the Highways Act 1980 ("the Planning Documents") or to be carried out by any other party pursuant to the Planning Documents which relate to and/or benefit any part of the Development.

Scaffolding

1.38. The Seller shall have the right to enter onto the Property after completion with or without plant machinery and vehicles and to erect scaffolding and to place plant and machinery on the

Property in order to complete the construction in all respects of any adjoining building or other structure. Such rights will be exercised in such a manner as to cause as little damage to the Property and as little inconvenience to the Buyer as is reasonably practicable and the Seller will promptly make good all and any damage caused.

Roads and Sewers

1.39. Notwithstanding Legal Completion the Seller shall, if applicable to the Development:

1.39.1. construct the estate roads and estate sewers to the specifications of the Highway and Water Authorities respectively;

1.39.2. maintain the same until they are adopted as Highways and Sewers maintainable at the public expense; and

1.39.3. fully compensate the Buyer in respect of any liability which the Buyer properly incurs in respect of the above until adoption.

Building Works on the Development

1.40. Notwithstanding the covenant for quiet enjoyment (i.e. the promise that the Buyer will be able to enjoy the property without hostile third party claims) (and any other relevant provisions to be incorporated in the Transfer) the Buyer acknowledges that the Seller and those authorised by the Seller will be entitled to complete any outstanding construction or works to the Development notwithstanding any inconvenience or annoyance that may be caused as a result of such works (the Seller agrees to use all reasonable efforts to cause as little inconvenience and annoyance as is reasonably and economically practical in all the circumstances).

Advertising Material

1.41. Both the Seller and its agents may do the following without having to pay any compensation to the Buyer:

1.41.1. until the last Property within the Development (which includes the Property) is sold, the Seller may retain and display on the Property sales boards and other marketing information and photographs of any Property on the Development;

1.41.2. enter onto the Property to install, maintain or clean such sales boards provided the Seller makes good any damage caused as a result of doing so; and

1.41.3. for the period of 10 years after completion of the sale of the Property, be able to take external photographs of the Property and use them in its advertising and marketing material.

Decision Making of the Buyer

1.42. The Seller has made reasonable efforts to ensure the accuracy of statements made to the Buyer or information given to the Buyer by the Seller before the Buyer entered into this Contract and the Buyer confirms to the Seller that in making its decision to purchase the Property it has:

1.42.1. only taken into account and/or relied upon statements or representations contained in written communications sent to the Buyer's conveyancers or in the Schedule of Spoken Statements at Appendix 1 to this Contract;

1.42.2. ensured that its conveyancer has informed the Seller's solicitors of all spoken statements that it considers important and the Buyer is relying upon and such statements are included in the Schedule of Spoken Statements at Appendix 1;

1.42.3. acknowledged that any advertisements, brochures or layouts and other marketing material is intended for guidance only and not intended to form part of this Contract or to be relied upon;

1.42.4. has taken all reasonable steps to satisfy itself that the Property, the Development and the surrounding neighbourhood is suitable for its purposes;

1.42.5. has read and understood the Code and the Warranty to be provided by the New Home Warranty Provider; and

Dispute Resolution

1.43. If any disputes shall arise between the Seller and the Buyer concerning the construction of the Property or any other matter or thing arising under this Contract in the first instance the dispute shall be referred to the Seller's complaints handling procedure. If the dispute is not resolved to the Buyer's satisfaction following that process, the Buyer shall seek to resolve such dispute, prior to beginning any court proceedings, as follows:

1.43.1. if and to the extent that the subject matter of the dispute falls within the scope of the dispute resolution process of the relevant new home warranty provider (the "Resolution Process"), the Buyer shall first use that Resolution Process; and

1.43.2. if and to the extent that the dispute falls within the scope of the New Homes Ombudsman Service the Buyer shall use that service.

1.44. No term of this Contract is intended to limit restrict or exclude any rights or obligations arising under this Contract that cannot legally (whether by any act of parliament or otherwise) be so limited restricted or excluded and the terms of this Contract should be interpreted accordingly.

Jurisdiction

1.45. The English Courts shall have exclusive jurisdiction over any claims brought by the Buyer against the Seller.

Entire Agreement

1.46. This Agreement and the Buyback Contract constitutes the entire agreement between the Buyer and Seller and supersedes all previous agreements between the Buyer and Seller relating to its subject matter. All previous agreements are withdrawn and no reliance shall be placed upon them.

Other Matters

1.47. The Contracts (Rights of Third Parties) Act 1999 does not apply to this Contract, which means that no third party can enforce this Contract.

1.48. The Party Wall Act 1996 shall not apply to any works or construction carried out on land that falls outside the boundaries of the Property the Buyer is buying.

APPENDIX 1
Schedule of Spoken Statements

[Insert any representations to be relied on by the Buyer as referred to in clause 1.56.2]